

Shri Goverdhan Sahu v. State of U.P.

Allahabad High Court · Division Bench · 1 September 2014 · Criminal Misc. Writ Petition No. 14860 of 2014 · Criminal Misc. Writ Petition No. 14860 of 2014 · **FIR quash refused; CrPC arrest safeguards; compounding under Code**

HEADNOTE

The Allahabad High Court refused to quash an FIR under Section 135 of the Electricity Act, 2003 that disclosed a cognizable offence. It directed that if arrest were made for an offence not entailing more than seven years' sentence, the police must follow CrPC Sections 41(1)(b) and 41-A, and that a compoundable offence may be compounded under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Shri Goverdhan Sahu petitioned to quash the FIR dated 10 August 2014 registered as Case Crime No. 946 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Maudaha, District Hamirpur. Arrest had not been made. He argued that the FIR should be quashed; that because any sentence could not exceed seven years the police should not arrest mechanically; and that the alleged offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest and compounding

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Where arrest has not been made and the offence cannot attract a sentence of more than seven years, any arrest must comply with CrPC Sections 41(1)(b) and 41-A; if the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — COMPOUNDING OF THE S.135 OFFENCE ON THESE FACTS

If the offence is compoundable, the petitioner may seek the remedy under the Electricity Supply Code, 2005. ¶ 1